KADMON CORP., LLC et al v. MSN PHARMS. INC. et al

Plaintiff:	KADMON CORP., LLC, KADMON PHARMS. LLC and SANOFI-AVENTIS U.S. LLC
Defendant:	MSN PHARMS. INC., MSN LABS. PVT. LTD., NATCO PHARMA LTD., NATCO PHARMA USA, LLC, NATCO PHARMA INC., HETERO USA INC., HETERO LABS LTD. UNIT - V and HETERO LABS LTD.
Case Number:	3:2026cv14005
Filed:	October 27, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Tonianne J Bongiovanni
Referring Judge:	Georgette Castner
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 28, 2026	**Filing 4** SUMMONS ISSUED as to HETERO LABS LTD., HETERO LABS LTD. UNIT - V, HETERO USA INC., MSN LABS. PVT. LTD., MSN PHARMS. INC., NATCO PHARMA INC., NATCO PHARMA LTD., NATCO PHARMA USA, LLC. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (amk)
October 28, 2026	**Filing 3** AO120 Patent/Trademark Form filed. (amk)
October 28, 2026	Notice of Judicial Preferences. #Click here for the Judge's Individual Procedure Requirements. (amk)
October 27, 2026	Magistrate Judge Tonianne J. Bongiovanni added. (amk)
October 27, 2026	**Filing 2** Corporate Disclosure Statement by KADMON CORP., LLC, KADMON PHARMS. LLC, SANOFI-AVENTIS U.S. LLC. (WALSH, LIZA)
October 27, 2026	**Filing 1** COMPLAINT against HETERO LABS LTD., HETERO LABS LTD. UNIT - V, HETERO USA INC., MSN LABS. PVT. LTD., MSN PHARMS. INC., NATCO PHARMA INC., NATCO PHARMA LTD., NATCO PHARMA USA, LLC (Filing and Admin fee $ 405 receipt number ANJDC-18119088), filed by KADMON PHARMS. LLC, SANOFI-AVENTIS U.S. LLC, KADMON CORP., LLC. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Exhibit C, #4 Civil Cover Sheet, #5 AO 120 Form)(WALSH, LIZA)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: KADMON CORP., LLC (Delaware), KADMON PHARMS. LLC (Pennsylvania), and Sanofi-Aventis US. LLC (Delaware)
  - Defendant: MSN PHARMS. INC. (Delaware), MSN LABS. PVT. LTD. (India); NATCO PHARMA LTD. (India), Natco Pharma USA, LLC (Delaware), Natco Pharma Inc. (Delaware); Hetero USA Inc. (Delaware), HETERO LABS LTD. UNIT - V (India), and HETERO LABS LTD. (India)
  - Plaintiff's Counsel: Walsh Pizzi O'Reilly Falanga LLP
- Case Identification: 3:24-cv-10023, D.N.J., 10/29/2024
- Venue Allegations: Venue is alleged based on the defendants' business operations, established places of business, and employees within New Jersey, as well as prior consent to jurisdiction and venue in the District of New Jersey in other litigations.
- Core Dispute: Plaintiffs allege that Defendants' submissions of Abbreviated New Drug Applications (ANDAs) to the FDA for generic versions of REZUROCK® (belumosudil) infringe patents covering methods for administering the drug to treat chronic graft-versus-host disease.
- Technical Context: The technology concerns a pharmaceutical treatment method for chronic graft-versus-host disease (cGVHD), a serious complication of allogeneic cell transplants, using a selective ROCK2 inhibitor.
- Key Procedural History: The complaint pleads that the '202 patent and the '043 patent were each duly and legally issued by the USPTO and asserts them as issued, without alleging any post-issuance proceedings that altered their claims. The action arises under the Hatch-Waxman framework, following Defendants' ANDA submissions with Paragraph IV certifications and their service of notice letters on Plaintiffs.

Case Timeline

Date	Event
2021-07-16	FDA grants approval for REZUROCK® (belumosudil) NDA
2022-07-14	Earliest Priority Date for '202 and '143 Patents

2024-09-24	’202 Patent Issues
2025-04-03	Claims 2, 5, and 6 of ’202 Patent Disclaimed
2025-05-07	Supplemental Examination of ’202 Patent Requested
2025-06-05	USPTO Orders *Ex Parte* Reexamination of ’202 Patent
2025-08-28	MSN Defendants send Notice Letter regarding ’202 Patent
2025-09-11	Natco Defendants send Notice Letter regarding ’202 Patent
2025-09-19	Hetero Defendants send Notice Letter regarding ’202 Patent
2026-01-30	Reexamination Certificate for ’202 Patent Issues
2026-10-20	’143 Patent Issues
2026-10-20	Plaintiffs send letters to all Defendants re: '143 Patent
2026-10-27	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,097,202 - "Methods of Administering Belumosudil for Treatment of Chronic Graft Versus Host Disease"

- Patent Identification: U.S. Patent No. 12,097,202, issued September 24, 2024.

The Invention Explained

- Problem Addressed: The patent addresses the treatment of chronic graft-versus-host disease (cGVHD), a frequent and serious complication of allogeneic hematopoietic cell transplants (alloHCT) that is a leading cause of

non-relapse mortality '202 Patent, col. 1:17-33 Standard treatments like corticosteroids have high failure rates and significant long-term side effects '202 Patent, col. 1:45-55

- The Patented Solution: The invention is a method for treating cGVHD with belumosudil, a selective ROCK2 inhibitor, that incorporates a specific risk management protocol for treatment-related infections '202 Patent, col. 2:11-14 The claimed method requires ceasing administration of the drug if a patient develops a "Grade 3" infection and resuming administration at the same dose only after the infection has subsided to a "Grade 1 level or less" '202 Patent, claim 1 The patent defines these infection grades by the level of medical intervention required '202 Patent, claim 1
- Technical Importance: This dosing method provides a defined protocol for managing a known adverse reaction to the therapy, potentially enhancing patient safety while allowing for the continued use of an effective treatment for a debilitating disease '202 Patent, col. 2:11-14

Key Claims at a Glance

- The complaint asserts independent claim 1 Compl. ¶117
- The essential elements of asserted claim 1 are:
  - A method of treating cGVHD in a patient comprising the steps of:
  - (a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide (the "Compound") at a daily dose equivalent to 200 mg;
  - (b) identifying a treatment-related infection;
  - (c) ceasing administration when the infection is at a Grade 3 level, where a Grade 3 infection requires intravenous antibiotic, antifungal, antiviral, radiological, or operative intervention; and
  - (d) resuming administration at the previously administered dose when the infection recovers to a Grade 1 level or less, where a Grade 1 infection does not require intervention.
- The complaint states that all other claims depend from claim 1 Compl. ¶116

U.S. Patent No. 12,128,043 - "Method of Administering Belumosudil for Treatment of Chronic Graft Versus Host Disease"

- Patent Identification: U.S. Patent No. 12,128,043, issued October 29, 2024.

The Invention Explained

- Problem Addressed: The '043 Patent addresses the same technical problem as the '202 Patent: the need for effective cGVHD treatments and protocols for

managing therapy-related side effects, particularly in patients who have failed previous treatments '043 Patent, col. 1:17-55

- The Patented Solution: The '043 Patent claims a similar method of using belumosudil to treat cGVHD. The method involves administering the drug, ceasing administration if the patient experiences a Grade 3 treatment-related infection as defined by the Common Terminology Criteria for Adverse Events (CTCAE), and resuming administration at the same dose once the infection has recovered to Grade 1 or less under CTCAE '043 Patent, claim 1 Unlike the amended claim of the '202 Patent, the claims of the '043 Patent do not include specific definitions of the infection grades within the claim body itself, instead relying on the external CTCAE standard '043 Patent, col. 6:40-42
- Technical Importance: This invention, like the '202 Patent, provides a structured method for managing adverse reactions, which is critical for maintaining patients on long-term therapy for cGVHD '043 Patent, col. 6:40-42

Key Claims at a Glance

- The complaint asserts independent claims 1 and 19 Compl. ¶152
- The essential elements of asserted claim 1 are:
  - A method of treating cGVHD comprising the steps of:
  - (a) administering the Compound at a daily dose equivalent to 200 mg;
  - (b) ceasing administration when the patient experiences a treatment-related infection that is Grade 3 under CTCAE; and
  - (c) resuming administration at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.
- The essential elements of asserted claim 19 are similar to claim 1 but recite a daily dose equivalent to 400 mg and further require that the patient is also administered one or more proton pump inhibitors '043 Patent, claim 19
- The complaint states that claims 2-18 depend from claim 1, and claim 20 depends from claim 19 Compl. ¶152

III. The Accused Instrumentality

Product Identification

The accused instrumentalities are the generic belumosudil tablet products for which the Defendants have filed ANDAs with the FDA, seeking approval for marketing prior to the expiration of the patents-in-suit Compl. ¶33 These include MSN's ANDA No. 219714 Compl. ¶51, Natco's ANDA No. 220781, and Hetero's ANDA No. 220751.

Functionality and Market Context

The complaint alleges that the Defendants' ANDAs seek approval to market generic "belumosudil tablets, 200 mg" for oral use Compl. ¶89 The complaint provides the chemical structure of the active pharmaceutical ingredient, belumosudil mesylate Compl. ¶74 The core of the infringement allegation centers on the proposed product labeling for these generic drugs Compl. ¶120 Compl. ¶156 Plaintiffs allege that the proposed labels will be "substantially identical" to the label for the branded product, REZUROCK®, and will instruct and encourage healthcare professionals to administer the generic products in a manner that directly infringes the patented methods Compl. ¶120 Compl. ¶156

The ANDAs seek approval for the same indication as REZUROCK®: "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy" Compl. ¶91 Compl. ¶99 Compl. ¶107 This context establishes the market for which the generic products are intended.

IV. Analysis of Infringement Allegations

'202 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:	The proposed label for Defendants' generic product is for the treatment of cGVHD in patients who have failed at least two prior lines of systemic therapy.	¶124	col. 9:8-10
(a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide...at a daily dose that is	The proposed label allegedly instructs healthcare professionals to administer 200 mg of belumosudil orally once daily.	¶125	col. 9:11-15

equivalent to 200 mg of the free base...			
(b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;	The proposed label allegedly includes clinical information stating that infections were among the most common adverse reactions and a leading cause of dose interruption in clinical trials.	¶126	col. 9:16-19
(c) ceasing administration...when the adverse reaction is an infection at a Grade 3 level; wherein a...Grade 3 level...comprises an infection wherein intravenous (IV) antibiotic...intervention is indicated; and	The proposed label allegedly instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1," which in turn instructs them to "[h]old REZUROCK" for adverse reactions of "Grade 3 severity."	¶121; ¶125	col. 9:20-27
(d) resuming administration...at the previously administered daily dose when the patient's...infection has recovered to Grade 1 level or less...	The proposed label allegedly instructs that after holding the drug for a Grade 3 adverse reaction, the provider should "then resume REZUROCK at the recommended dose level" once the patient has recovered to "Grade 0-1."	¶121; ¶125	col. 9:28-33

'043 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating chronic graft-versus-host disease (CGVHD) comprising the steps of:	The proposed label for Defendants' generic product is for the treatment of cGVHD in patients who have failed at least two prior lines of systemic therapy.	¶160	col. 51:38-40
(a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide...at a daily dose that is equivalent to 200 mg...	The proposed label allegedly instructs healthcare professionals to administer 200 mg of belumosudil orally once daily.	¶161	col. 51:41-47
(b) ceasing administration...when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and	The proposed label allegedly instructs professionals to modify dosage for adverse reactions, stating that for "Grade 3 severity," the provider should "[h]old REZUROCK." The label allegedly notes that severity is	¶157; ¶161	col. 51:48-52

	"Based on CTCAE v. 4.03."		
(c) resuming administration...at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.	The proposed label allegedly instructs that after holding the drug until recovery to Grade 0-1 under CTCAE, the provider should "then resume REZUROCK at the recommended dose level."	¶157; ¶161	col. 51:53-57

- Identified Points of Contention:
  - Scope Questions ('202 Patent): A primary issue for the '202 Patent will be whether the Defendants' proposed labels induce infringement of the specific definitions recited in claim 1. For instance, the claim requires ceasing administration for a Grade 3 infection "wherein intravenous (IV) antibiotic... intervention is indicated." The infringement analysis will question whether a label that instructs holding the drug for any "Grade 3 severity" adverse reaction, without explicitly mentioning IV antibiotic intervention, is sufficient to meet this limitation.
  - Technical Questions (Inducement): The case may involve a dispute over whether the combination of dosage instructions, clinical trial data, and adverse reaction management guidelines on the proposed labels rises to the level of actively encouraging or instructing infringement. Defendants may argue that the label merely provides information and leaves the full sequence of treatment decisions to the physician's judgment, which may not be sufficient to prove the specific intent required for inducement.
  - Definitional Questions: The analysis may focus on whether the phrase "resume REZUROCK at the recommended dose level," as allegedly used in the labels Compl. ¶121, is equivalent to the claim requirement of resuming at the "previously administered daily dose."

V. Key Claim Terms for Construction

"infection at a Grade 3 level; wherein a...Grade 3 level comprises an infection wherein intravenous (IV) antibiotic...intervention is indicated" '202 Patent, claim 1

- The Term: "infection at a Grade 3 level; wherein a...Grade 3 level comprises an infection wherein intravenous (IV) antibiotic...intervention is indicated"
- Context and Importance: This language appears in claim 1 of the '202 Patent, and its construction will be central to the infringement analysis of the '202 Patent. Practitioners may focus on this term because the infringement case hinges on whether the accused label must explicitly describe an infection requiring "IV antibiotic... intervention," or if a more general instruction to pause treatment for any "Grade 3" infection is sufficient.
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: Plaintiffs may argue that the patent adopts the CTCAE standard, which defines the grades of adverse events '202 Patent, col. 6:38-42 If the CTCAE standard itself defines a Grade 3 infection as one requiring such interventions, an instruction on the label to act on a "Grade 3" infection could be interpreted as implicitly teaching the full limitation.
    - Evidence for a Narrower Interpretation: Defendants may argue that this specific language must be narrowly construed. They may contend that for inducement, the accused label must actively encourage the specific elements recited, and a general reference to "Grade 3 severity" Compl. ¶121 does not explicitly teach the requirement of IV antibiotic intervention, thus failing to meet this limitation.

"resuming administration of the Compound at the previously administered daily dose" '202 Patent, claim 1 '043 Patent, claim 1

- The Term: "resuming administration of the Compound at the previously administered daily dose"
- Context and Importance: This term defines the final step of the claimed methods. The infringement allegation relies on the proposed label instructing to "resume REZUROCK at the recommended dose level" Compl. ¶121 Compl. ¶157 The dispute will center on whether "recommended dose level" is synonymous with "previously administered daily dose."
- Intrinsic Evidence for Interpretation:
    - Evidence for a Broader Interpretation: The specification repeatedly refers to the 200 mg dose as the "clinically recommended dose" '202 Patent, col. 5:29-33 Plaintiffs may argue that in the context of the label's instructions—start at 200 mg, hold for an adverse event, then "resume at the recommended dose level"—the only reasonable interpretation is a return to the original 200 mg dose.
    - Evidence for a Narrower Interpretation: Defendants may argue that "recommended dose level" is not necessarily the same as the "previously

administered" dose. They could suggest it leaves room for physician discretion to resume at a lower dose, which would mean the label does not instruct the full claimed method and therefore does not induce infringement.

VI. Other Allegations

- Indirect Infringement: The complaint's core theory is induced infringement. Plaintiffs allege that by seeking approval for a generic product with a label that will be "substantially identical" to the REZUROCK® label, Defendants intend for and will cause healthcare professionals to perform the patented methods of use Compl. ¶120 Compl. ¶129 Compl. ¶156 Compl. ¶165 Knowledge of the patents is alleged based on Defendants' notice letters and the filing of the complaint itself Compl. ¶¶127-128 Compl. ¶¶163-164
- Willful Infringement: Plaintiffs allege that Defendants' infringement is willful and that this is an "exceptional" case warranting an award of attorneys' fees under 35 U.S.C. § 285 (Compl. ¶¶130, 166). This allegation is based on Defendants' alleged knowledge of the patents prior to the lawsuit, evidenced by their Paragraph IV certification notice letters Compl. ¶89 Compl. ¶97 Compl. ¶105

VII. Analyst's Conclusion: Key Questions for the Case

- A central issue will be one of induced infringement: Will the court find that the combination of dosing instructions, adverse event data, and management guidelines on the Defendants' proposed generic drug labels constitutes active encouragement to perform every step of the patented methods, thereby satisfying the specific intent requirement for inducement under 35 U.S.C. § 271(b)?
- A key question for the '202 Patent will be one of claim scope: Does the specific definition of a "Grade 3 infection"—requiring "intravenous (IV) antibiotic...intervention"—necessitate that an accused label explicitly recites such interventions to be infringing, or is a general instruction to pause treatment for any "Grade 3" adverse reaction sufficient, given the external CTCAE standard referenced in the patent?
- The case will also turn on a question of validity: Given that Plaintiffs assert both the '202 Patent and the similar '043 Patent, the court may need to determine whether the claimed methods are non-obvious over prior art treatment regimens, a question that raises the possibility of an invalidity defense for the Defendants.

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY

KADMON CORP., LLC, KADMON PHARMS. LLC, and SANOFI-AVENTIS U.S. LLC, Plaintiffs, v. MSN PHARMS. INC., MSN LABS. PVT. LTD., NATCO PHARMA LTD., NATCO PHARMA USA, LLC, NATCO PHARMA INC., HETERO USA INC., HETERO LABS LTD. UNIT – V, and HETERO LABS LTD., Defendants.	Civil Action No. _____

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiffs Kadmon Corporation, LLC ("Kadmon Corporation"), Kadmon Pharmaceuticals, LLC ("Kadmon Pharmaceuticals") and sanofi-aventis U.S. LLC ("sanofi-aventis") (collectively, "Plaintiffs"), for their complaint against Defendants MSN Pharmaceuticals Inc. ("MSNPI") and MSN Laboratories Pvt. Ltd. ("MSN Labs") (collectively, "MSN Defendants"), Natco Pharma Limited ("Natco Limited"), Natco Pharma USA, LLC ("Natco USA"), and Natco Inc. ("Natco Inc.") (collectively, "Natco Defendants"), and Hetero USA Inc. ("Hetero USA"), Hetero Labs Limited Unit – V ("Hetero Unit – V"), and Hetero Labs Limited ("Hetero Labs") (collectively, "Hetero Defendants") (all collectively, "Defendants"), hereby allege as follows:

THE PARTIES

Plaintiffs

1. Plaintiff Kadmon Corporation is a limited liability company organized and existing under the laws of Delaware, having a principal place of business at 100 Morris Street, Morristown, NJ 07960.
2. Plaintiff Kadmon Pharmaceuticals is a limited liability company organized and existing under the laws of Pennsylvania, having a principal place of business at 100 Morris Street, Morristown, New Jersey 07960. Kadmon Pharmaceuticals is a wholly-owned subsidiary of Kadmon Corporation.
3. Plaintiff sanofi-aventis is a limited liability company organized and existing under the laws of Delaware, having offices at 100 Morris Street, Morristown, NJ 07960.
4. Kadmon Corporation, Kadmon Pharmaceuticals, and sanofi-aventis are each indirectly wholly-owned subsidiaries of Sanofi, a limited company organized and

existing under the laws of France, having offices at 46 Avenue de la Grande Armée, 75017 Paris, France.

MSN Defendants

5. On information and belief, Defendant MSNPI is a corporation organized and existing under the laws of Delaware, having a principal place of business at 20 Duke Road, Piscataway, NJ 08854.
6. On information and belief, MSNPI, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
7. On information and belief, Defendant MSN Labs is a private limited company organized and existing under the laws of India, having a principal place of business at MSN House, Plot No: C-24, Industrial Estate, Sanathnagar, Hyderabad, Telangana 500018, India.
8. On information and belief, MSN Labs, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
9. On information and belief, MSNPI is a wholly-owned subsidiary of MSN Labs.
10. On information and belief, MSNPI is an authorized U.S. agent for MSN Labs.
11. On information and belief, the MSN Defendants are agents of each other with respect to the development, regulatory approval, marketing, sale and/or distribution of generic products within the United States. On information and belief, the acts of the MSN Defendants complained of herein were done with the cooperation, participation, and assistance of, and at least in part for the benefit of, each other.
12. On information and belief, the MSN Defendants have cooperated and assisted in the preparation and filing of ANDA No. 220840 ("MSN ANDA") and will be involved in the manufacture, importation, marketing and/or sale of the drug that is the subject of the MSN ANDA, if approved by the FDA.

Natco Defendants

13. On information and belief, Defendant Natco Limited is a corporation organized and existing under the laws of India, having a principal place of business at Natco House Road No. 2, Banjara Hills, Hyderabad 500034, India.
14. On information and belief, Natco Limited, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
15. On information and belief, Defendant Natco USA is a corporation organized and existing under the laws of the state of Delaware, with its principal place of business at 300 Interpace Pkwy, Ste C100, Parsippany, NJ 07054.
16. On information and belief, Natco USA, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.

17. On information and belief, Defendant Natco Inc. is a corporation organized and existing under the laws of the state of Delaware.
18. On information and belief, Natco Inc., by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
19. On information and belief, Natco USA and Natco Inc. are each wholly-owned subsidiaries of Natco Limited.
20. On information and belief, the Natco Defendants are agents of each other with respect to the development, regulatory approval, marketing, sale and/or distribution of generic products within the United States. On information and belief, the acts of the Natco Defendants complained of herein were done with the cooperation, participation, and assistance of, and at least in part for the benefit of, each other.
21. On information and belief, the Natco Defendants have cooperated and assisted in the preparation and filing of ANDA No. 220781 ("Natco ANDA") and will be involved in the manufacture, importation, marketing and/or sale of the drug that is the subject of the Natco ANDA, if approved by the FDA.

Hetero Defendants

22. On information and belief, Defendant Hetero USA is a corporation organized and existing under the laws of Delaware, having a principal place of business at 1035 Centennial Avenue, Piscataway, New Jersey 08854.
23. On information and belief, Hetero USA, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
24. On information and belief, Defendant Hetero Unit – V is a corporation organized and existing under the laws of India, having a principal place of business at Polepally, Jadcherla, Mahabubnagar 509301, Andhra Pradesh, India.
25. On information and belief, Hetero Unit – V, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
26. On information and belief, Defendant Hetero Labs is a corporation organized and existing under the laws of India, having a principal place of business at 7-2-A2, Hetero Corporate Industrial Estates, Sanath Nagar, Hyderabad 500018, Andhra Pradesh, India.
27. On information and belief, Hetero Labs, by itself and/or through its affiliates and agents, is in the business of, *inter alia*, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States.
28. On information and belief, Hetero USA is the U.S. Regulatory Agent for Hetero Unit – V.
29. On information and belief, Hetero USA and Hetero Unit – V are each wholly-owned subsidiaries of Hetero Labs.
30. On information and belief, Hetero Labs holds FDA DMF No. 41719 for belumosudil mesylate.

31. On information and belief, the Hetero Defendants are agents of each other with respect to the development, regulatory approval, marketing, sale and/or distribution of generic products within the United States. On information and belief, the acts of the Hetero Defendants complained of herein were done with the cooperation, participation, and assistance of, and at least in part for the benefit of, each other.
32. On information and belief, the Hetero Defendants have cooperated and assisted in the preparation and filing of ANDA No. 220751 ("Hetero ANDA") and will be involved in the manufacture, importation, marketing and/or sale of the drug that is the subject of the Hetero ANDA, if approved by the FDA.

NATURE OF ACTION

33. This is a civil action for the infringement of United States Patent Nos. 12,097,202 ("the '202 patent") and 12,766,143 ("the '143 patent") under the patent laws of the United States, Title 35, United States Code, including § 271, and for declaratory judgment pursuant to the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202, *et seq.*, arising from Defendants' filing of ANDA Nos. 220840, 220781, and 220751 with the FDA seeking approval to market generic versions of the pharmaceutical product REZUROCK® (belumosudil) tablets, for oral use, before the expiration of the '202 and '143 patents, i.e. patents covering REZUROCK® and its use.

JURISDICTION AND VENUE

34. This Court has jurisdiction over the subject matter of this action, including Counts I – XII against the Defendants, pursuant to 28 U.S.C. §§ 1331, 1338, 2201, and 2202.

MSN Defendants

35. This Court has personal jurisdiction over the MSN Defendants by virtue of the fact that, *inter alia*, the MSN Defendants have committed the tortious act of patent infringement pursuant to 35 U.S.C. § 271(e)(2)(A) that has led to foreseeable harm and injury to Plaintiffs in the State of New Jersey and throughout the United States.
36. This Court has personal jurisdiction over the MSN Defendants by virtue of the fact that, on information and belief, the MSN Defendants, either directly or through their affiliates, regularly and continuously do or solicit business in New Jersey, engage in other persistent courses of conduct in New Jersey, and/or derive substantial revenue from services or things used or consumed in New Jersey, including by selling their pharmaceutical products in New Jersey and, therefore, can reasonably expect to be subject to jurisdiction in the New Jersey courts. On information and belief, the MSN Defendants conduct marketing and sales activities in the State of New Jersey, including, but not limited to, distribution, marketing, and sales of pharmaceutical products to New Jersey residents that are continuous and systematic. On information and belief, if the MSN ANDA is approved, the MSN Defendants will market and sell their generic version of REZUROCK® in New Jersey.
37. This Court further has personal jurisdiction over the MSN Defendants by virtue of the fact that the MSN Defendants have previously submitted to the jurisdiction of this Court and purposefully availed themselves of this Court by consenting to this Court's jurisdiction and asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, *e.g., Merck Sharp & Dohme BV, et al. v. Aurobindo Pharma USA, Inc., et al.*, C.A. Nos. 20-cv-2576 and 20-cv-03314 (consolidated)

(D.N.J. filed Mar. 10, 2020); *Boehringer Ingelheim Pharm., Inc., et al. v. HEC Pharm Group, et al.*, C.A. No. 15-cv-5982 (D.N.J. filed Aug. 4, 2015); *Esperion Therapeutics, Inc. v. MSN Pharms. Inc. et al.*, C.A. No. 24-cv-06386 (D.N.J. filed May 23, 2024).

38. This Court has personal jurisdiction over MSNPI. On information and belief, MSNPI regularly and continuously conducts business in New Jersey. On information and belief, MSNPI has its principal place of business at 20 Duke Road, Piscataway, New Jersey 08854. On information and belief, MSNPI has an active business entity status registered with the state of New Jersey under the business entity identification number 0400627791 and has a corporate agent for service of process at 20 Duke Road, Piscataway, New Jersey 08854.
39. This Court has personal jurisdiction over MSN Labs by virtue of the fact that, on information and belief, MSN Labs regularly and continuously transacts business within New Jersey, either directly or through its wholly-owned subsidiary, MSNPI, a company having its principal place of business in New Jersey, including by selling pharmaceutical products in New Jersey.
40. Alternatively, this Court may exercise jurisdiction over MSN Labs pursuant to Federal Rule of Civil Procedure 4(k)(2) because (a) Plaintiffs' claims arise under federal law; (b) MSN Labs is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) MSN Labs has sufficient contacts with the United States as a whole, including, but not limited to manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over MSN Labs satisfies due process.
41. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and 1400(b).
42. Venue is proper in this Judicial District for MSNPI. On information and belief, MSNPI has an active business entity identification number in the State of New Jersey (0400627791), has employees in New Jersey, and maintains a regular and established place of business in New Jersey at 20 Duke Road, Piscataway, New Jersey 08854. Furthermore, on information and belief, based on MSNPI's connections to New Jersey, discoverable information in its possession, custody, and/or control regarding the MSN ANDA will likely show that MSNPI engaged in activities in New Jersey relevant to the preparation and/or submission of the MSN ANDA and therefore committed acts of infringement within this Judicial District.
43. Venue is proper in this Judicial District for MSN Labs because, *inter alia*, MSN Labs is a foreign corporation not residing in any United States district and may be sued in any judicial district.
44. Venue is further proper over the MSN Defendants by virtue of the fact that the MSN Defendants have previously consented to venue in this Court, including, but not limited to, *e.g., Merck Sharp & Dohme BV, et al. v. Aurobindo Pharma USA, Inc., et al.*, C.A. Nos. 20-cv-2576 and 20-cv-03314 (consolidated) (D.N.J. filed Mar. 10, 2020); *Boehringer Ingelheim Pharm., Inc., et al. v. HEC Pharm Group, et al.*, C.A. No. 15-cv-5982 (D.N.J. filed Aug. 4, 2015); *Esperion Therapeutics, Inc. v. MSN Pharms. Inc. et al.*, C.A. No. 24-cv-06386 (D.N.J. filed May 23, 2024).
45. Venue is further proper in this Court as to the MSN Defendants because, *inter alia*, the MSN Defendants have committed, aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture REZUROCK® for sale and use throughout the United States, including within the State of New Jersey.

Natco Defendants

46. This Court has personal jurisdiction over the Natco Defendants by virtue of the fact that, *inter alia*, the Natco Defendants have committed the tortious act of patent infringement pursuant to 35 U.S.C. § 271(e)(2)(A) that has led to foreseeable harm and injury to Plaintiffs in the State of New Jersey and throughout the United States.
47. This Court has personal jurisdiction over the Natco Defendants by virtue of the fact that, on information and belief, the Natco Defendants, either directly or through their affiliates, regularly and continuously do or solicit business in New Jersey, engage in other persistent courses of conduct in New Jersey, and/or derive substantial revenue from services or things used or consumed in New Jersey, including by selling their pharmaceutical products in New Jersey and, therefore, can reasonably expect to be subject to jurisdiction in the New Jersey courts. On information and belief, the Natco Defendants conduct marketing and sales activities in the State of New Jersey, including, but not limited to, distribution, marketing, and sales of pharmaceutical products to New Jersey residents that are continuous and systematic. On information and belief, if the Natco ANDA is approved, the Natco Defendants will market and sell their generic version of REZUROCK® in New Jersey.
48. This Court further has personal jurisdiction over the Natco Defendants by virtue of the fact that Natco Limited and Natco Inc. have previously submitted to the jurisdiction of this Court and purposefully availed themselves of this Court by consenting to this Court's jurisdiction and asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, *e.g., Janssen Pharmaceutica NV v. Natco Pharma Ltd.*, C.A. 23-cv-3959-JKS (D.N.J. filed July 25, 2023); *AstraZeneca Pharms. L.P. v. Natco Pharma Ltd. and Natco Pharma Inc.*, C.A. 23-cv-796 (D.N.J. filed Feb. 10, 2023).
49. This Court has personal jurisdiction over Natco Limited by virtue of the fact that, on information and belief, Natco Limited regularly and continuously transacts business within New Jersey, either directly or through its wholly-owned subsidiaries, Natco USA, a company having its principal place of business in New Jersey, and/or Natco Inc., including by selling pharmaceutical products in New Jersey. On information and belief, Natco Limited is registered with the State of New Jersey's Department of the Treasury's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID Number 0100983392 and has appointed Timothy G. Gearity, CPA, 185 Park Avenue, Rutherford, NJ 07070-2344 as its registered agent for service of process in New Jersey.
50. Alternatively, this Court may exercise jurisdiction over Natco Limited pursuant to Federal Rule of Civil Procedure 4(k)(2) because (a) Plaintiffs' claims arise under federal law; (b) Natco Limited is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Natco Limited has sufficient contacts with the United States as a whole, including, but not limited to manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Natco Limited satisfies due process.
51. This Court has personal jurisdiction over Natco USA. On information and belief, Natco USA regularly and continuously conducts business in New Jersey. On information and belief, Natco USA has its principal place of business at 300 Interpace Pkwy, Ste C100, Parsippany, NJ 07054. On information and belief, Natco USA has

an active business entity status registered with the state of New Jersey under the business entity identification number 0400697513.

52. This Court has personal jurisdiction over Natco Inc. On information and belief, Natco Inc. regularly and continuously conducts business in New Jersey. On information and belief, Natco Inc. has an active business entity status registered within the State of New Jersey under the business entity identification number 0100953831.
53. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and 1400(b).
54. Venue is proper in this Judicial District for Natco Limited because, *inter alia*, Natco Limited is a foreign corporation not residing in any United States district and may be sued in any judicial district.
55. Venue is proper in this Judicial District for Natco USA. On information and belief, Natco USA has an active business entity identification number in the State of New Jersey (0400697513), has employees in New Jersey, and maintains a regular and established place of business in New Jersey at 300 Interpace Pkwy, Ste C100, Parsippany, NJ 07054. Furthermore, on information and belief, based on Natco USA's connections to New Jersey, discoverable information in its possession, custody, and/or control regarding the Natco ANDA will likely show that Natco USA engaged in activities in New Jersey relevant to the preparation and/or submission of the Natco ANDA and therefore committed acts of infringement within this Judicial District.
56. Venue is proper in this Judicial District for Natco Inc. On information and belief, Natco Inc. has an active business entity identification in the State of New Jersey (0100953831).
57. Venue is further proper over the Natco Defendants by virtue of the fact that Natco Limited and Natco Inc. have previously consented to venue in this Court, including, but not limited to, *e.g., Janssen Pharmaceutica NV v. Natco Pharma Ltd.*, C.A. 23-cv-3959-JKS (D.N.J. filed July 25, 2023); *AstraZeneca Pharms. L.P. v. Natco Pharma Ltd. and Natco Pharma Inc.*, C.A. 23-cv-796 (D.N.J. filed Feb. 10, 2023).
58. Venue is further proper in this Court for the Natco Defendants because, *inter alia*, the Natco Defendants have committed, aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture REZUROCK® for sale and use throughout the United States, including within the State of New Jersey.

Hetero Defendants

59. This Court has personal jurisdiction over the Hetero Defendants by virtue of the fact that, *inter alia*, the Hetero Defendants have committed the tortious act of patent infringement pursuant to 35 U.S.C. § 271(e)(2)(A) that has led to foreseeable harm and injury to Plaintiffs in the State of New Jersey and throughout the United States.
60. This Court has personal jurisdiction over the Hetero Defendants by virtue of the fact that, on information and belief, the Hetero Defendants, either directly or through their affiliates, regularly and continuously do or solicit business in New Jersey, engage in other persistent courses of conduct in New Jersey, and/or derive substantial revenue from services or things used or consumed in New Jersey, including by selling their pharmaceutical products in New Jersey and, therefore, can reasonably expect to be subject to jurisdiction in the New Jersey courts. On information and belief, the Hetero Defendants conduct marketing and sales activities in the State of New Jersey,

including, but not limited to, distribution, marketing, and sales of pharmaceutical products to New Jersey residents that are continuous and systematic. On information and belief, if the Hetero ANDA is approved, the Hetero Defendants will market and sell their generic version of REZUROCK® in New Jersey.

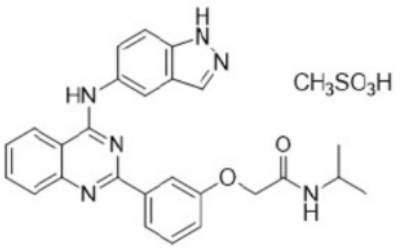
61. This Court further has personal jurisdiction over the Hetero Defendants by virtue of the fact that all three Hetero Defendants have previously submitted to the jurisdiction of this Court and purposefully availed themselves of this Court by consenting to this Court's jurisdiction and/or asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, *e.g., Celgene Corp. v. Hetero Labs Ltd., et al.*, C.A. No. 2-19-cv-15449 (D.N.J. filed July 16, 2019); *BTG Int'l Ltd., et al. v. Actavis Labs. FL, Inc., et al.*, C.A. No. 2-15-cv-05909 (D.N.J. filed July 31, 2015).
62. This Court has personal jurisdiction over Hetero USA. On information and belief, Hetero USA regularly and continuously conducts business in New Jersey. On information and belief, Hetero USA has its principal place of business at 1035 Centennial Avenue, Piscataway, New Jersey 08854. Hetero USA has an active business entity status registered with the state of New Jersey under the business entity identification number 0400362826.
63. This Court has personal jurisdiction over Hetero Labs by virtue of the fact that, on information and belief, Hetero Labs regularly and continuously transacts business within New Jersey, either directly or through its wholly-owned subsidiary, Hetero USA, a company having its principal place of business in New Jersey, including by selling pharmaceutical products in New Jersey.
64. Alternatively, this Court may exercise jurisdiction over Hetero Labs pursuant to Federal Rule of Civil Procedure 4(k)(2) because (a) Plaintiffs' claims arise under federal law; (b) Hetero Labs is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Hetero Labs has sufficient contacts with the United States as a whole, including, but not limited to manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Hetero Labs satisfies due process.
65. This Court has personal jurisdiction over Hetero Unit – V by virtue of the fact that, on information and belief, Hetero Unit – V regularly and continuously transacts business within New Jersey, either directly or through its affiliate, Hetero USA, a company having its principal place of business in New Jersey, including by selling pharmaceutical products in New Jersey.
66. Alternatively, this Court may exercise jurisdiction over Hetero Unit – V pursuant to Federal Rule of Civil Procedure 4(k)(2) because (a) Plaintiffs' claims arise under federal law; (b) Hetero Unit – V is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Hetero Unit – V has sufficient contacts with the United States as a whole, including, but not limited to manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Hetero Unit – V satisfies due process.
67. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and 1400(b).
68. Venue is proper in this Judicial District for Hetero USA. On information and belief, Hetero USA has an active business entity identification number in the State of New Jersey (0400362826), has employees in New Jersey, and maintains a regular and established place of business in New Jersey at 1035 Centennial Avenue, Piscataway, New Jersey 08854. Furthermore, on information and belief, based on Hetero USA's connections to New Jersey, discoverable information in its possession, custody,

and/or control regarding the Hetero ANDA will likely show that Hetero USA engaged in activities in New Jersey relevant to the preparation and/or submission of the Hetero ANDA and therefore committed acts of infringement within this Judicial District.

69. Venue is proper in this Judicial District for Hetero Labs because, *inter alia*, Hetero Labs is a foreign corporation not residing in any United States district and may be sued in any judicial district.
70. Venue is proper in this Judicial District for Hetero Unit – V because, *inter alia*, Hetero Unit – V is a foreign corporation not residing in any United States district and may be sued in any judicial district.
71. Venue is further proper over the Hetero Defendants by virtue of the fact that all three Hetero Defendants have previously consented to venue in this Court, including, but not limited to, *e.g., Celgene Corp. v. Hetero Labs Ltd., et al.*, C.A. No. 2-19-cv-15449 (D.N.J. filed July 16, 2019); *BTG Int'l Ltd., et al. v. Actavis Labs. FL, Inc., et al.*, C.A. No. 2-15-cv-05909 (D.N.J. filed July 31, 2015).
72. Venue is further proper in this Court as to the Hetero Defendants because, *inter alia*, the Hetero Defendants have committed, aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture REZUROCK® for sale and use throughout the United States, including within the State of New Jersey.

THE REZUROCK® NDA

73. Kadmon Pharmaceuticals filed New Drug Application ("NDA") No. 214783 for "REZUROCK® (belumosudil) tablets, for oral use." The FDA granted approval of NDA No. 214783 on July 16, 2021 for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.
74. The active pharmaceutical ingredient in REZUROCK® is belumosudil mesylate, which can be referred to by the chemical name 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide methanesulfonate (1:1). Belumosudil mesylate has the following chemical structure:



THE PATENTS-IN-SUIT

75. On September 24, 2024, the '202 patent, entitled "Methods of Administering Belumosudil for Treatment of Chronic Graft Versus Host Disease," was duly and legally issued to Kadmon Corporation.
76. On April 3, 2025, claims 2, 5, and 6 of the '202 patent were disclaimed under 37 C.F.R. § 1.321(a).

77. On May 7, 2025, supplemental examination of the ’202 patent under 35 U.S.C. § 257 was requested by Kadmon Corporation. The USPTO found a substantial question of patentability affecting at least one claim of the ’202 patent, and *ex parte* reexamination pursuant to 35 U.S.C. § 257 was ordered on June 5, 2025. The reexamination certificate for the ’202 patent issued on January 30, 2026 containing an amended claim 1 of the ’202 patent.
78. A true and correct copy of the ’202 patent, including the reexamination certificate, is attached hereto as Exhibit A.
79. The ’202 patent claims methods of using belumosudil.
80. Plaintiffs timely submitted the relevant patent information for the ’202 patent to the FDA for listing in the Orange Book for REZUROCK® (belumosudil) tablets, for oral use within 30 days of the patent’s issuance. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the ’202 patent is listed in the Orange Book for REZUROCK® for oral use.
81. Kadmon Corporation owns the ’202 patent.
82. Pursuant to an agreement between Kadmon Corporation and sanofi-aventis, sanofi-aventis is the exclusive licensee of the ’202 patent.
83. On October 20, 2026, the ’143 patent, entitled “Methods of Administering Belumosudil for Treatment of Chronic Graft Versus Host Disease,” was duly and legally issued to Kadmon Corporation.
84. A true and correct copy of the ’143 patent is attached hereto as Exhibit B.
85. The ’143 patent claims methods of using belumosudil.
86. Plaintiffs timely submitted the relevant patent information for the ’143 patent to the FDA for listing in the Orange Book for REZUROCK® (belumosudil) tablets, for oral use within 30 days of the patent’s issuance.
87. Kadmon Corporation owns the ’143 patent.
88. Pursuant to an agreement between Kadmon Corporation and sanofi-aventis, sanofi-aventis is the exclusive licensee of the ’143 patent.

ACTS GIVING RISE TO THE PATENT INFRINGEMENT COUNTS

MSN Defendants

89. By a letter dated August 28, 2025 (“MSN Defendants’ Notice Letter”), the MSN Defendants informed Plaintiffs that the MSN Defendants had submitted the MSN ANDA to the FDA seeking approval to manufacture, use and/or sell “belumosudil tablets, 200 mg” (“MSN’s Generic Product”) prior to the expiration of the ’202 patent.
90. On information and belief, the MSN Defendants submitted the MSN ANDA to the FDA under § 505(j) of the Federal Food, Drug, and Cosmetic Act (“FDCA”), seeking approval to engage in the commercial manufacture, use, or sale of MSN’s Generic Product as a generic version of REZUROCK®.
91. On information and belief, the MSN ANDA seeks FDA approval of MSN’s Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.
92. The MSN Defendants’ Notice Letter also advised Plaintiffs that the MSN Defendants’ ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(B)(iv) that, in

the MSN Defendants' opinion, certain claims of the '202 patent are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale and/or use of MSN's Generic Product.

93. By a letter dated October 20, 2026 ("Plaintiffs' October 20, 2026 Letter to the MSN Defendants"), Plaintiffs informed the MSN Defendants that the '143 patent had issued and would be submitted for listing in the Orange Book, and that, on information and belief, the use of MSN's Generic Product according to its proposed labeling would infringe the claims of the '143 patent.
94. There is an actual, real, immediate, and justiciable controversy between Plaintiffs and the MSN Defendants regarding the infringement, validity, and enforceability of the '202 and '143 patents.
95. On information and belief, following FDA approval of the MSN ANDA, the MSN Defendants will make, use, offer to sell, or sell MSN's Generic Product throughout the United States, and/or import such a generic product into the United States.
96. On information and belief, following FDA approval of the MSN ANDA, the MSN Defendants intend to directly benefit from sales of MSN's Generic Product.

Natco Defendants

97. By a letter dated September 11, 2025 ("Natco's Notice Letter"), Natco Limited informed Kadmon Corporation and Kadmon Pharmaceuticals that it had submitted the Natco ANDA to the FDA seeking approval to manufacture, use and/or sell "belumosudil mesylate, oral tablet" ("Natco's Generic Product") prior to the expiration of the '202 patent.
98. On information and belief, Natco Limited, in concert with its wholly-owned subsidiaries Natco USA and Natco Inc., submitted the Natco ANDA to the FDA under § 505(j) of the FDCA, seeking approval to engage in the commercial manufacture, use, or sale of Natco's Generic Product as a generic version of REZUROCK®.
99. On information and belief, the Natco ANDA seeks FDA approval of Natco's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.
100. Natco's Notice Letter also advised Kadmon Corporation and Kadmon Pharmaceuticals that Natco's ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(B)(iv) that, in the Natco Defendants' opinion, certain claims of the '202 patent are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale and/or use of Natco's Generic Product.
101. By a letter dated October 20, 2026 ("Plaintiffs' October 20, 2026 Letter to the Natco Defendants"), Plaintiffs informed the Natco Defendants that the '143 patent had issued and would be submitted for listing in the Orange Book, and that, on information and belief, the use of Natco's Generic Product according to its proposed labeling would infringe the claims of the '143 patent.
102. There is an actual, real, immediate, and justiciable controversy between Plaintiffs and the Natco Defendants regarding the infringement, validity, and enforceability of the '202 and '143 patents.

103. On information and belief, following FDA approval of the Natco ANDA, the Natco Defendants will make, use, offer to sell, or sell Natco's Generic Product throughout the United States, and/or import such a generic product into the United States.
104. On information and belief, following FDA approval of the Natco ANDA, the Natco Defendants intend to directly benefit from sales of Natco's Generic Product.

Hetero Defendants

105. By a letter dated September 19, 2025 ("Hetero Defendants' Notice Letter"), the Hetero Defendants informed Kadmon Corporation, LLC that it had submitted the Hetero ANDA to the FDA seeking approval to manufacture, use and/or sell "Belumosudil Mesylate Tablets Eq. 200mg Base; Oral" ("Hetero's Generic Product") prior to the expiration of the '202 patent.
106. On information and belief, the Hetero Defendants submitted the Hetero ANDA to the FDA under § 505(j) of the FDCA, seeking approval to engage in the commercial manufacture, use, or sale of Hetero's Generic Product as a generic version of REZUROCK®.
107. On information and belief, the Hetero ANDA seeks FDA approval of Hetero's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.
108. The Hetero Defendants' Notice Letter also advised Kadmon Corporation that the Hetero Defendants' ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(B)(iv) that, in the Hetero Defendants' opinion, certain claims of the '202 patent are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale and/or use of Hetero's Generic Product.
109. By a letter dated October 20, 2026 ("Plaintiffs' October 20, 2026 Letter to the Hetero Defendants"), Plaintiffs informed the Hetero Defendants that the '143 patent had issued and would be submitted for listing in the Orange Book, and that, on information and belief, the use of Hetero's Generic Product according to its proposed labeling would infringe the claims of the '143 patent.
110. There is an actual, real, immediate, and justiciable controversy between Plaintiffs and the Hetero Defendants regarding the infringement, validity, and enforceability of the '202 and '143 patents.
111. On information and belief, following FDA approval of the Hetero ANDA, the Hetero Defendants will make, use, offer to sell, or sell Hetero's Generic Product throughout the United States, and/or import such a generic product into the United States.
112. On information and belief, following FDA approval of the Hetero ANDA, the Hetero Defendants intend to directly benefit from sales of Hetero's Generic Product.

COUNT I
(Infringement of the '202 Patent by the MSN Defendants)

113. Plaintiffs incorporate each of the preceding paragraphs 1-112 as if fully set forth herein.

114. The MSN Defendants' Notice Letter advised Plaintiffs that the MSN Defendants' ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(B)(iv) that, in the MSN Defendants' opinion, certain claims of the '202 patent are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale and/or use of MSN's Generic Product.

115. By submitting and maintaining the MSN ANDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of MSN's Generic Product throughout the United States, including New Jersey, prior to the expiration of the '202 patent, the MSN Defendants committed an act of infringement of the '202 patent under 35 U.S.C. § 271(e)(2)(A).

116. The '202 patent claims methods of using belumosudil. Claim 1 is the only independent claim; all other claims depend from claim 1.

117. Claim 1 of the '202 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:
>
> (a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;
>
> (c) ceasing administration of the Compound to the patient when the adverse reaction is an infection at a Grade 3 level; wherein a treatment-related infection at a Grade 3 level comprises an infection wherein intravenous (IV) antibiotic, antifungal, antiviral, radiological or operative intervention is indicated; and
>
> (d) resuming administration of the Compound to the patient at the previously administered daily dose when the patient's treatment-related infection has recovered to Grade 1 level or less, wherein an infection at a Grade 1 level comprises an infection wherein intervention is not indicated.

118. On information and belief, the MSN Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of MSN's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

119. On information and belief, MSN's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

120. On information and belief, the proposed labeling for MSN's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '202 patent.

121. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The

REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3.

122. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of MSN's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '202 patent under 35 U.S.C. § 271(a).

123. On information and belief, MSN's Generic Product, if approved by the FDA, will contain the compound belumosudil.

124. On information and belief, the MSN ANDA seeks FDA approval of MSN's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

125. On information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of MSN's Generic Product orally once daily and to modify the dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) MSN's Generic Product until recovery to Grade 0-1, then resume MSN's Generic Product at the recommended dose level.

126. On information and belief, the proposed labeling for MSN's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

127. On information and belief, the MSN Defendants were aware of the existence of the '202 patent and its listing in the Orange Book as demonstrated by their reference to the '202 patent in the MSN Defendants' Notice Letter.

128. Moreover, at least as of the date of filing, the MSN Defendants have actual knowledge of the '202 patent and its reexamination certificate by way of this Complaint.

129. The foregoing acts by the MSN Defendants constitute and/or will constitute infringement of the '202 patent and/or active inducement of the '202 patent under 35 U.S.C. § 271(b).

130. On information and belief, the MSN Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the ’202 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the ’202 patent is invalid. This case is exceptional.
131. If the MSN Defendants’ infringement of the ’202 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT II

(Declaratory Judgment of Infringement of the ’202 Patent by the MSN Defendants)

132. Plaintiffs incorporate each of the preceding paragraphs 1-131 as if fully set forth herein.
133. The ’202 patent claims methods of using belumosudil. Claim 1 is the only independent claim; all other claims depend from claim 1.
134. Claim 1 of the ’202 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:
>
> (a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;
>
> (c) ceasing administration of the Compound to the patient when the adverse reaction is an infection at a Grade 3 level; wherein a treatment-related infection at a Grade 3 level comprises an infection wherein intravenous (IV) antibiotic, antifungal, antiviral, radiological or operative intervention is indicated; and
>
> (d) resuming administration of the Compound to the patient at the previously administered daily dose when the patient’s treatment-related infection has recovered to Grade 1 level or less, wherein an infection at a Grade 1 level comprises an infection wherein intervention is not indicated.

135. On information and belief, the MSN Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of MSN’s Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.
136. On information and belief, MSN’s Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.
137. On information and belief, the proposed labeling for MSN’s Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the ’202 patent.

138. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3.

139. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of MSN's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '202 patent under 35 U.S.C. § 271(a).

140. On information and belief, MSN's Generic Product, if approved by the FDA, will contain the compound belumosudil.

141. On information and belief, the MSN ANDA seeks FDA approval of MSN's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

142. On information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of MSN's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) MSN's Generic Product until recovery to Grade 0-1, then resume MSN's Generic Product at the recommended dose level.

143. On information and belief, the proposed labeling for MSN's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

144. On information and belief, the MSN Defendants were aware of the existence of the '202 patent and its listing in the Orange Book as demonstrated by their reference to the '202 patent in the MSN Defendants' Notice Letter.

145. Moreover, at least as of the date of filing, the MSN Defendants have actual knowledge of the ’202 patent and its reexamination certificate by way of this Complaint.

146. The foregoing acts by the MSN Defendants constitute and/or will constitute infringement of the ’202 patent and/or active inducement of the ’202 patent under 35 U.S.C. § 271(b).

147. On information and belief, the MSN Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the ’202 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the ’202 patent is invalid. This case is exceptional.

148. If the MSN Defendants’ infringement of the ’202 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT III

149. Plaintiffs incorporate each of the preceding paragraphs 1-148 as if fully set forth herein.

150. Plaintiffs timely submitted the relevant patent information for the ’143 patent to the FDA for listing in the Orange Book for REZUROCK® (belumosudil) tablets, for oral use within 30 days of the patent’s issuance. MSN is required to submit a certification pursuant to 21 U.S.C. § 355(j)(2)(A)(vii) for the ’143 patent upon its listing in the Orange Book.

151. By submitting and maintaining the MSN ANDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of MSN’s Generic Product throughout the United States, including New Jersey, prior to the expiration of the ’143 patent, the MSN Defendants committed an act of infringement of the ’143 patent under 35 U.S.C. § 271(e)(2)(A).

152. The ’143 patent claims methods of using belumosudil. Claims 1 and 19 are the only independent claims; claims 2-18 depend from claim 1, and claim 20 depends from claim 19.

153. Claim 1 of the ’143 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) comprising the steps of:
>
> (a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) ceasing administration of the Compound when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and
>
> (c) resuming administration of the Compound at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.

154. On information and belief, the MSN Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of MSN's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

155. On information and belief, MSN's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

156. On information and belief, the proposed labeling for MSN's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '143 patent.

157. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. Table 1 notes that severity is "Based on CTCAE v. 4.03."

158. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of MSN's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '143 patent under 35 U.S.C. § 271(a).

159. On information and belief, MSN's Generic Product, if approved by the FDA, will contain the compound belumosudil.

160. On information and belief, the MSN ANDA seeks FDA approval of MSN's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

161. On information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of MSN's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity under CTCAE, the healthcare provider should hold (i.e., cease) MSN's Generic Product until recovery to Grade 0-1 under CTCAE, then resume MSN's Generic Product at the recommended dose level.

162. On information and belief, the proposed labeling for MSN's Generic Product will include the same clinical information as the REZUROCK® label, including stating that

in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

163. On information and belief, the MSN Defendants were aware of the existence of the '143 patent and its listing in the Orange Book prior to the filing of this Complaint at least because of Plaintiffs' October 20, 2026 Letter to the MSN Defendants.

164. Moreover, at least as of the date of the filing, the MSN Defendants have actual knowledge of the '143 patent and its submission for listing in the Orange Book by way of this Complaint.

165. The foregoing acts by the MSN Defendants constitute and/or will constitute infringement of the '143 patent and/or active inducement of the '143 patent under 35 U.S.C. § 271(b).

166. On information and belief, the MSN Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '143 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '143 patent is invalid. This case is exceptional.

167. If the MSN Defendants' infringement of the '143 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT IV

(Declaratory Judgment of Infringement of the '143 Patent by the MSN Defendants)

168. Plaintiffs incorporate each of the preceding paragraphs 1-167 as if fully set forth herein.

169. The '143 patent claims methods of using belumosudil. Claims 1 and 19 are the only independent claims; claims 2-18 depend from claim 1, and claim 20 depends from 19.

170. Claim 1 of the '143 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) comprising the steps of:
>
> (a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) ceasing administration of the Compound when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and
>
> (c) resuming administration of the Compound at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.

171. On information and belief, the MSN Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of MSN's

Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

172. On information and belief, MSN's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

173. On information and belief, the proposed labeling for MSN's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '143 patent.

174. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. Table 1 notes that severity is "Based on CTCAE v. 4.03."

175. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of MSN's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '143 patent under 35 U.S.C. § 271(a).

176. On information and belief, MSN's Generic Product, if approved by the FDA, will contain the compound belumosudil.

177. On information and belief, the MSN ANDA seeks FDA approval of MSN's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

178. On information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of MSN's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for MSN's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) MSN's Generic Product until recovery to Grade 0-1, then resume MSN's Generic Product at the recommended dose level.

179. On information and belief, the proposed labeling for MSN's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

180. On information and belief, the MSN Defendants were aware of the existence of the ’143 patent and its listing in the Orange Book prior to the filing of this Complaint at least because of Plaintiffs’ October 20, 2026 Letter to the MSN Defendants.

181. Moreover, at least as of the date of the filing, the MSN Defendants have actual knowledge of the ’143 patent and its submission for listing in the Orange Book by way of this Complaint.

182. The foregoing acts by the MSN Defendants constitute and/or will constitute infringement of the ’143 patent and/or active inducement of the ’143 patent under 35 U.S.C. § 271(b).

183. On information and belief, the MSN Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the ’143 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the ’143 patent is invalid. This case is exceptional.

184. If the MSN Defendants’ infringement of the ’143 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT V

(Infringement of the ’202 Patent by the Natco Defendants)

185. Plaintiffs incorporate each of the preceding paragraphs 1-184 as if fully set forth herein.

186. The Natco Defendants’ Notice Letter advised Plaintiffs that the Natco Defendants’ ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(B)(iv) that, in the Natco Defendants’ opinion, certain claims of the ’202 patent are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale and/or use of Natco’s Generic Product.

187. By submitting and maintaining the Natco ANDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of Natco’s Generic Product throughout the United States, including New Jersey, prior to the expiration of the ’202 patent, Natco Limited committed an act of infringement of the ’202 patent under 35 U.S.C. § 271(e)(2)(A).

188. The ’202 patent claims methods of using belumosudil. Claim 1 is the only independent claim; all other claims depend from claim 1.

189. Claim 1 of the ’202 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:
>
> (a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;
>
> (c) ceasing administration of the Compound to the patient when the adverse reaction is an infection at a Grade 3 level; wherein a treatment-related infection at a Grade 3

level comprises an infection wherein intravenous (IV) antibiotic, antifungal, antiviral, radiological or operative intervention is indicated; and

(d) resuming administration of the Compound to the patient at the previously administered daily dose when the patient's treatment-related infection has recovered to Grade 1 level or less, wherein an infection at a Grade 1 level comprises an infection wherein intervention is not indicated.

190. On information and belief, the Natco Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Natco's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

191. On information and belief, Natco's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

192. On information and belief, the proposed labeling for Natco's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '202 patent.

193. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3.

194. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Natco's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '202 patent under 35 U.S.C. § 271(a).

195. On information and belief, Natco's Generic Product, if approved by the FDA, will contain the compound belumosudil.

196. On information and belief, the Natco ANDA seeks FDA approval of Natco's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

197. On information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Natco's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) Natco's Generic Product until recovery to Grade 0-1, then resume Natco's Generic Product at the recommended dose level.

198. On information and belief, the proposed labeling for Natco's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

199. On information and belief, the Natco Defendants were aware of the existence of the '202 patent and its listing in the Orange Book as demonstrated by their reference to the '202 patent in the Natco Defendants' Notice Letter.

200. Moreover, at least as of the date of filing, the Natco Defendants have actual knowledge of the '202 patent and its reexamination certificate by way of this Complaint.

201. The foregoing acts by the Natco Defendants constitute and/or will constitute infringement of the '202 patent and/or active inducement of the '202 patent under 35 U.S.C. § 271(b).

202. On information and belief, the Natco Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '202 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '202 patent is invalid. This case is exceptional.

203. If the Natco Defendants' infringement of the '202 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT VI

(Declaratory Judgment of Infringement of the '202 Patent by the Natco Defendants)

204. Plaintiffs incorporate each of the preceding paragraphs 1-203 as if fully set forth herein.

205. The '202 patent claims methods of using belumosudil. Claim 1 is the only independent claim; all other claims depend from claim 1.

206. Claim 1 of the '202 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:

(a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;

(b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;

(c) ceasing administration of the Compound to the patient when the adverse reaction is an infection at a Grade 3 level; wherein a treatment-related infection at a Grade 3 level comprises an infection wherein intravenous (IV) antibiotic, antifungal, antiviral, radiological or operative intervention is indicated; and

(d) resuming administration of the Compound to the patient at the previously administered daily dose when the patient's treatment-related infection has recovered to Grade 1 level or less, wherein an infection at a Grade 1 level comprises an infection wherein intervention is not indicated.

207. On information and belief, the Natco Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Natco's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

208. On information and belief, Natco's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

209. On information and belief, the proposed labeling for Natco's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '202 patent.

210. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3.

211. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Natco's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '202 patent under 35 U.S.C. § 271(a).

212. On information and belief, Natco's Generic Product, if approved by the FDA, will contain the compound belumosudil.

213. On information and belief, the Natco ANDA seeks FDA approval of Natco's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic

graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

214. On information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Natco's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) Natco's Generic Product until recovery to Grade 0-1, then resume Natco's Generic Product at the recommended dose level.

215. On information and belief, the proposed labeling for Natco's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

216. On information and belief, the Natco Defendants were aware of the existence of the '202 patent and its listing in the Orange Book as demonstrated by their reference to the '202 patent in the Natco Defendants' Notice Letter.

217. Moreover, at least as of the date of filing, the Natco Defendants have actual knowledge of the '202 patent and its reexamination certificate by way of this Complaint.

218. The foregoing acts by the Natco Defendants constitute and/or will constitute infringement of the '202 patent and/or active inducement of the '202 patent under 35 U.S.C. § 271(b).

219. On information and belief, the Natco Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '202 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '202 patent is invalid. This case is exceptional.

220. If the Natco Defendants' infringement of the '202 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT VII
(Infringement of the '143 Patent by the Natco Defendants)

221. Plaintiffs incorporate each of the preceding paragraphs 1-220 as if fully set forth herein.

222. Plaintiffs timely submitted the relevant patent information for the '143 patent to the FDA for listing in the Orange Book for REZUROCK® (belumosudil) tablets, for oral use within 30 days of the patent's issuance. Natco is required to submit a certification pursuant to 21 U.S.C. § 355(j)(2)(A)(vii) for the '143 patent upon its listing in the Orange Book.

223. By submitting and maintaining the Natco ANDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of Natco's Generic Product throughout the United States, including New Jersey, prior to the expiration of the '143 patent, the Natco Defendants committed an act of infringement of the '143 patent under 35 U.S.C. § 271(e)(2)(A).

224. The '143 patent claims methods of using belumosudil. Claims 1 and 19 are the only independent claims; claims 2-18 depend from claim 1, and claim 20 depends from claim 19.

225. Claim 1 of the '143 patent reads:

A method of treating chronic graft-versus-host disease (cGVHD) comprising the steps of:

(a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;

(b) ceasing administration of the Compound when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and

(c) resuming administration of the Compound at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.

226. On information and belief, the Natco Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Natco's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

227. On information and belief, Natco's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

228. On information and belief, the proposed labeling for Natco's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '143 patent.

229. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. Table 1 notes that severity is "Based on CTCAE v. 4.03."

230. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Natco's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '143 patent under 35 U.S.C. § 271(a).

231. On information and belief, Natco's Generic Product, if approved by the FDA, will contain the compound belumosudil.

232. On information and belief, the Natco ANDA seeks FDA approval of Natco's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

233. On information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Natco's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity under CTCAE, the healthcare provider should hold (i.e., cease) Natco's Generic Product until recovery to Grade 0-1 under CTCAE, then resume Natco's Generic Product at the recommended dose level.

234. On information and belief, the proposed labeling for Natco's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

235. On information and belief, the Natco Defendants were aware of the existence of the '143 patent and its listing in the Orange Book prior to the filing of this Complaint at least because of Plaintiffs' October 20, 2026 Letter to the Natco Defendants.

236. Moreover, at least as of the date of the filing, the Natco Defendants have actual knowledge of the '143 patent and its submission for listing in the Orange Book by way of this Complaint.

237. The foregoing acts by the Natco Defendants constitute and/or will constitute infringement of the '143 patent and/or active inducement of the '143 patent under 35 U.S.C. § 271(b).

238. On information and belief, the Natco Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '143 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '143 patent is invalid. This case is exceptional.

239. If the Natco Defendants' infringement of the '143 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT VIII

(Declaratory Judgment of Infringement of the '143 Patent by the Natco Defendants)

240. Plaintiffs incorporate each of the preceding paragraphs 1-239 as if fully set forth herein.

241. The '143 patent claims methods of using belumosudil. Claims 1 and 19 are the only independent claims; claims 2-18 depend from claim 1, and claim 20 depends from claim 19.

242. Claim 1 of the '143 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) comprising the steps of:
>
> (a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or

a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;

(b) ceasing administration of the Compound when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and

(c) resuming administration of the Compound at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.

243. On information and belief, the Natco Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Natco's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

244. On information and belief, Natco's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

245. On information and belief, the proposed labeling for Natco's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '143 patent.

246. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. Table 1 notes that severity is "Based on CTCAE v. 4.03."

247. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Natco's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '143 patent under 35 U.S.C. § 271(a).

248. On information and belief, Natco's Generic Product, if approved by the FDA, will contain the compound belumosudil.

249. On information and belief, the Natco ANDA seeks FDA approval of Natco's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

250. On information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Natco's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Natco's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) Natco's Generic Product until recovery to Grade 0-1, then resume Natco's Generic Product at the recommended dose level.

251. On information and belief, the proposed labeling for Natco's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

252. On information and belief, the Natco Defendants were aware of the existence of the '143 patent and its listing in the Orange Book prior to the filing of this Complaint at least because of Plaintiffs' October 20, 2026 Letter to the Natco Defendants.

253. Moreover, at least as of the date of the filing, the Natco Defendants have actual knowledge of the '143 patent and its submission for listing in the Orange Book by way of this Complaint.

254. The foregoing acts by the Natco Defendants constitute and/or will constitute infringement of the '143 patent and/or active inducement of the '143 patent under 35 U.S.C. § 271(b).

255. On information and belief, the Natco Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '143 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '143 patent is invalid. This case is exceptional.

256. If the Natco Defendants' infringement of the '143 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT IX

(Infringement of the '202 Patent by the Hetero Defendants)

257. Plaintiffs incorporate each of the preceding paragraphs 1-256 as if fully set forth herein.

258. The Hetero Defendants' Notice Letter advised Plaintiffs that the Hetero Defendants' ANDA submission included a certification under 21 U.S.C. § 355(j)(2)(B)(iv) that, in the Hetero Defendants' opinion, certain claims of the '202 patent are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale and/or use of Hetero's Generic Product.

259. By submitting and maintaining the Hetero ANDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of Hetero's Generic Product throughout the United States, including New Jersey, prior to the expiration of the '202 patent, the Hetero Defendants committed an act of infringement of the '202 patent under 35 U.S.C. § 271(e)(2)(A).

260. The ’202 patent claims methods of using belumosudil. Claim 1 is the only independent claim; all other claims depend from claim 1.

261. Claim 1 of the ’202 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:
>
> (a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;
>
> (c) ceasing administration of the Compound to the patient when the adverse reaction is an infection at a Grade 3 level; wherein a treatment-related infection at a Grade 3 level comprises an infection wherein intravenous (IV) antibiotic, antifungal, antiviral, radiological or operative intervention is indicated; and
>
> (d) resuming administration of the Compound to the patient at the previously administered daily dose when the patient’s treatment-related infection has recovered to Grade 1 level or less, wherein an infection at a Grade 1 level comprises an infection wherein intervention is not indicated.

262. On information and belief, the Hetero Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Hetero’s Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

263. On information and belief, Hetero’s Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

264. On information and belief, the proposed labeling for Hetero’s Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the ’202 patent.

265. The REZUROCK® label states that REZUROCK® is indicated for the “treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.” See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to “[m]odify dosage for adverse reactions as per Table 1.” Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should “[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level.” Id. at 2-3.

266. The REZUROCK® label states that in the belumosudil clinical trials, the “most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .”, and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that

16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Hetero's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '202 patent under 35 U.S.C. § 271(a).

267. On information and belief, Hetero's Generic Product, if approved by the FDA, will contain the compound belumosudil.

268. On information and belief, the Hetero ANDA seeks FDA approval of Hetero's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

269. On information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Hetero's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) Hetero's Generic Product until recovery to Grade 0-1, then resume Hetero's Generic Product at the recommended dose level.

270. On information and belief, the proposed labeling for Hetero's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

271. On information and belief, the Hetero Defendants were aware of the existence of the '202 patent and its listing in the Orange Book as demonstrated by their reference to the '202 patent in the Hetero Defendants' Notice Letter.

272. Moreover, at least as of the date of filing, the Hetero Defendants have actual knowledge of the '202 patent and its reexamination certificate by way of this Complaint.

273. The foregoing acts by the Hetero Defendants constitute and/or will constitute infringement of the '202 patent and/or active inducement of the '202 patent under 35 U.S.C. § 271(b).

274. On information and belief, the Hetero Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '202 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '202 patent is invalid. This case is exceptional.

275. If the Hetero Defendants' infringement of the '202 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT X

(Declaratory Judgment of Infringement of the ’202 Patent by the Hetero Defendants)

276. Plaintiffs incorporate each of the preceding paragraphs 1-275 as if fully set forth herein.

277. The ’202 patent claims methods of using belumosudil. Claim 1 is the only independent claim; all other claims depend from claim 1.

278. Claim 1 of the ’202 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) in a patient in need thereof comprising the steps of:
>
> (a) administering 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) identifying an adverse reaction in the patient, wherein the adverse reaction is a treatment-related infection;
>
> (c) ceasing administration of the Compound to the patient when the adverse reaction is an infection at a Grade 3 level; wherein a treatment-related infection at a Grade 3 level comprises an infection wherein intravenous (IV) antibiotic, antifungal, antiviral, radiological or operative intervention is indicated; and
>
> (d) resuming administration of the Compound to the patient at the previously administered daily dose when the patient’s treatment-related infection has recovered to Grade 1 level or less, wherein an infection at a Grade 1 level comprises an infection wherein intervention is not indicated.

279. On information and belief, the Hetero Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Hetero’s Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

280. On information and belief, Hetero’s Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

281. On information and belief, the proposed labeling for Hetero’s Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the ’202 patent.

282. The REZUROCK® label states that REZUROCK® is indicated for the “treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.” See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C.

283. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to “[m]odify dosage for adverse reactions as per Table 1.” Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should “[h]old REZUROCK until recovery to Grade

0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Hetero's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '202 patent under 35 U.S.C. § 271(a).

284. On information and belief, Hetero's Generic Product, if approved by the FDA, will contain the compound belumosudil.

285. On information and belief, the Hetero ANDA seeks FDA approval of Hetero's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

286. On information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Hetero's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) Hetero's Generic Product until recovery to Grade 0-1, then resume Hetero's Generic Product at the recommended dose level.

287. On information and belief, the proposed labeling for Hetero's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

288. On information and belief, the Hetero Defendants were aware of the existence of the '202 patent and its listing in the Orange Book as demonstrated by their reference to the '202 patent in the Hetero Defendants' Notice Letter.

289. Moreover, at least as of the date of filing, the Hetero Defendants have actual knowledge of the '202 patent and its reexamination certificate by way of this Complaint.

290. The foregoing acts by the Hetero Defendants constitute and/or will constitute infringement of the '202 patent and/or active inducement of the '202 patent under 35 U.S.C. § 271(b).

291. On information and belief, the Hetero Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the '202 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the '202 patent is invalid. This case is exceptional.

292. If the Hetero Defendants' infringement of the '202 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT XI
(Infringement of the '143 Patent by the Hetero Defendants)

293. Plaintiffs incorporate each of the preceding paragraphs 1-292 as if fully set forth herein.

294. Plaintiffs timely submitted the relevant patent information for the '143 patent to the FDA for listing in the Orange Book for REZUROCK® (belumosudil) tablets, for oral use within 30 days of the patent's issuance. The Hetero Defendants are required to submit a certification pursuant to 21 U.S.C. § 355(j)(2)(A)(vii) for the '143 patent upon its listing in the Orange Book.

295. By submitting and maintaining the Hetero ANDA to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, sale and/or importation of Hetero's Generic Product throughout the United States, including New Jersey, prior to the expiration of the '143 patent, the Hetero Defendants committed an act of infringement of the '143 patent under 35 U.S.C. § 271(e)(2)(A).

296. The '143 patent claims methods of using belumosudil. Claims 1 and 19 are the only independent claims; claims 2-18 depend from claim 1, and claim 20 depends from claim 19.

297. Claim 1 of the '143 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) comprising the steps of:
>
> (a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) ceasing administration of the Compound when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and
>
> (c) resuming administration of the Compound at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.

298. On information and belief, the Hetero Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Hetero's Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

299. On information and belief, Hetero's Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

300. On information and belief, the proposed labeling for Hetero's Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the '143 patent.

301. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. Table 1 notes that severity is "Based on CTCAE v. 4.03."

302. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Hetero's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '143 patent under 35 U.S.C. § 271(a).

303. On information and belief, Hetero's Generic Product, if approved by the FDA, will contain the compound belumosudil.

304. On information and belief, the Hetero ANDA seeks FDA approval of Hetero's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

305. On information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Hetero's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity under CTCAE, the healthcare provider should hold (i.e., cease) Hetero's Generic Product until recovery to Grade 0-1 under CTCAE, then resume Hetero's Generic Product at the recommended dose level.

306. On information and belief, the proposed labeling for Hetero's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

307. On information and belief, the Hetero Defendants were aware of the existence of the '143 patent and its listing in the Orange Book prior to the filing of this Complaint at least because of Plaintiffs' October 20, 2026 Letter to the Hetero Defendants.

308. Moreover, at least as of the date of the filing, the Hetero Defendants have actual knowledge of the ’143 patent and its submission for listing in the Orange Book by way of this Complaint.

309. The foregoing acts by the Hetero Defendants constitute and/or will constitute infringement of the ’143 patent and/or active inducement of the ’143 patent under 35 U.S.C. § 271(b).

310. On information and belief, the Hetero Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the ’143 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the ’143 patent is invalid. This case is exceptional.

311. If the Hetero Defendants’ infringement of the ’143 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

COUNT XII

(Declaratory Judgment of Infringement of the ’143 Patent by the Hetero Defendants)

312. Plaintiffs incorporate each of the preceding paragraphs 1-311 as if fully set forth herein.

313. The ’143 patent claims methods of using belumosudil. Claims 1 and 19 are the only independent claims; claims 2-18 depend from claim 1, and claim 20 depends from claim 19.

314. Claim 1 of the ’143 patent reads:

> A method of treating chronic graft-versus-host disease (cGVHD) comprising the steps of:
>
> (a) administering to a patient in need thereof 2-{3-[4-(1H-indazol-5-ylamino)-2-quinazolinyl]phenoxy}-N-(propan-2-yl) acetamide, or a pharmaceutically acceptable salt thereof (Compound) to the patient at a daily dose that is equivalent to 200 mg of the free base of the Compound;
>
> (b) ceasing administration of the Compound when the patient experiences a treatment-related infection that is Grade 3 under Common Terminology Criteria for Adverse Events (CTCAE); and
>
> (c) resuming administration of the Compound at the previously administered daily dose when the infection has recovered to Grade 1 or less under CTCAE.

315. On information and belief, the Hetero Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Hetero’s Generic Product with proposed labeling immediately and imminently upon final approval of their ANDA.

316. On information and belief, Hetero’s Generic Product will be supplied in a substantially identical manner to REZUROCK®, namely, as a tablet containing belumosudil for oral use.

317. On information and belief, the proposed labeling for Hetero’s Generic Product will be substantially identical to the REZUROCK® label and instructs and actively encourages healthcare professionals to practice at least claim 1 of the ’143 patent.

318. The REZUROCK® label states that REZUROCK® is indicated for the "treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy." See, e.g., REZUROCK® label at 1, 2, attached hereto as Exhibit C. The REZUROCK® label instructs healthcare professionals to administer 200 mg of belumosudil orally once daily. Id. at 2. The REZUROCK® label also instructs healthcare professionals to "[m]odify dosage for adverse reactions as per Table 1." Id. Table 1 states that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should "[h]old REZUROCK until recovery to Grade 0-1, then resume REZUROCK at the recommended dose level." Id. at 2-3. Table 1 notes that severity is "Based on CTCAE v. 4.03."

319. The REZUROCK® label states that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", and that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%). Id. at 1, 4. Table 2 also indicates that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% experienced viral infection, and 4% experienced bacterial infection. Id. at 4-5. The label also lists infections as one of "[t]he most common side effects of REZUROCK." Id. at 6. Thus, on information and belief, the use of Hetero's Generic Product in accordance with its proposed labeling will directly infringe at least one claim of the '143 patent under 35 U.S.C. § 271(a).

320. On information and belief, Hetero's Generic Product, if approved by the FDA, will contain the compound belumosudil.

321. On information and belief, the Hetero ANDA seeks FDA approval of Hetero's Generic Product for the treatment of adult and pediatric patients 12 years and older with chronic graft-versus-host disease (chronic GVHD) after failure of at least two prior lines of systemic therapy.

322. On information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals to administer 200 mg of Hetero's Generic Product orally once daily and to modify dosage for adverse reactions. Specifically, on information and belief, the proposed labeling for Hetero's Generic Product will instruct and actively encourage healthcare professionals that for adverse reactions (other than hepatotoxicity) of Grade 3 severity, the healthcare provider should hold (i.e., cease) Hetero's Generic Product until recovery to Grade 0-1, then resume Hetero's Generic Product at the recommended dose level.

323. On information and belief, the proposed labeling for Hetero's Generic Product will include the same clinical information as the REZUROCK® label, including stating that in the belumosudil clinical trials, the "most common (>20%) adverse reactions, including laboratory abnormalities, were infections . . .", that the adverse reactions leading to dose interruption in more than 2% of patients included infections (11%), that 16% of patients in the clinical trials experienced Grade 3-4 infection (pathogen not specified), 4% of patients experienced viral infection, 4% of patients experienced bacterial infection, and that infections are one of the most common side effects of belumosudil.

324. On information and belief, the Hetero Defendants were aware of the existence of the '143 patent and its listing in the Orange Book prior to the filing of this Complaint at least because of Plaintiffs' October 20, 2026 Letter to the Hetero Defendants.

325. Moreover, at least as of the date of the filing, the Hetero Defendants have actual knowledge of the ’143 patent and its submission for listing in the Orange Book by way of this Complaint.

326. The foregoing acts by the Hetero Defendants constitute and/or will constitute infringement of the ’143 patent and/or active inducement of the ’143 patent under 35 U.S.C. § 271(b).

327. On information and belief, the Hetero Defendants have no objective good faith basis in either the facts or the law to contend that they do not infringe the ’143 patent, nor do they have an objective good faith basis in either the facts or the law to contend that the ’143 patent is invalid. This case is exceptional.

328. If the Hetero Defendants’ infringement of the ’143 patent is not permanently enjoined, Plaintiffs will suffer substantial and irreparable harm for which there is no remedy at law.

PRAYER FOR RELIEF

Against the MSN Defendants

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A Judgment that the MSN Defendants infringed one or more claims of United States Patent No. 12,097,202 by its submission of ANDA No. 220840 (the MSN ANDA) seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of MSN’s Generic Product before the expiration of United States Patent No. 12,097,202 under 35 U.S.C. § 271(e)(2)(A);

B. A Judgment that the MSN Defendants’ commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of MSN’s Generic Product will infringe one or more claims of United States Patent No. 12,097,202 under 35 U.S.C. § 271(b);

C. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining the MSN Defendants, and their officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of MSN’s Generic Product prior to the expiration date of United States Patent No. 12,097,202, inclusive of any extensions;

D. An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220840 (the MSN ANDA) under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent No. 12,097,202, inclusive of any extensions;

E. A Judgment that the claims of United States Patent No. 12,097,202 remain valid and enforceable;

F. If the MSN Defendants engage in the commercial manufacture, use, importation, offer for sale, and/or sale of MSN’s Generic Product prior to expiration of United States Patent No. 12,097,202, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

G. A Judgment that the MSN Defendants infringed one or more claims of United States Patent No. 12,766,143 by its submission of ANDA No. 220840 (the MSN ANDA) seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of MSN's Generic Product before the expiration of United States Patent No. 12,766,143 under 35 U.S.C. § 271(e)(2)(A);

H. A Judgment that the MSN Defendants' commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of MSN's Generic Product will infringe one or more claims of United States Patent No. 12,766,143 under 35 U.S.C. § 271(b);

I. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining the MSN Defendants, and their officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of MSN's Generic Product prior to the expiration date of United States Patent No. 12,766,143, inclusive of any extensions;

J. An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220840 (the MSN ANDA) under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent No. 12,766,143, inclusive of any extensions;

K. A Judgment that the claims of United States Patent No. 12,766,143 remain valid and enforceable;

L. If the MSN Defendants engage in the commercial manufacture, use, importation, offer for sale, and/or sale of MSN's Generic Product prior to expiration of United States Patent No. 12,766,143, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

M. A declaration that this case is "exceptional" under 35 U.S.C. § 285 and an award of reasonable attorneys' fees;

N. An award of costs and expenses in this action; and

O. Such other and further relief as the Court may deem just and proper.

Against the Natco Defendants

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A Judgment that the Natco Defendants infringed one or more claims of United States Patent No. 12,097,202 by their submission of ANDA No. 220781 (the Natco ANDA) seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Natco's Generic Product before the expiration of United States Patent No. 12,097,202 under 35 U.S.C. § 271(e)(2)(A);

B. A Judgment that the Natco Defendants' commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Natco's Generic Product will infringe one or more claims of United States Patent No. 12,097,202 under 35 U.S.C. § 271(b);

C. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining the Natco Defendants, and their officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Natco's Generic Product prior to the expiration date of United States Patent No. 12,097,202, inclusive of any extensions;

D. An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220781 (the Natco ANDA) under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent No. 12,097,202, inclusive of any extensions;

E. A Judgment that the claims of United States Patent No. 12,097,202 remain valid and enforceable;

F. If the Natco Defendants engage in the commercial manufacture, use, importation, offer for sale, and/or sale of Natco's Generic Product prior to expiration of United States Patent No. 12,097,202, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

G. A Judgment that the Natco Defendants infringed one or more claims of United States Patent No. 12,766,143 by their submission of ANDA No. 220781 (the Natco ANDA) seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Natco's Generic Product before the expiration of United States Patent No. 12,766,143 under 35 U.S.C. § 271(e)(2)(A);

H. A Judgment that the Natco Defendants' commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Natco's Generic Product will infringe one or more claims of United States Patent No. 12,766,143 under 35 U.S.C. § 271(b);

I. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining the Natco Defendants, and their officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Natco's Generic Product prior to the expiration date of United States Patent No. 12,766,143, inclusive of any extensions;

J. An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220781 (the Natco ANDA) under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent No. 12,766,143, inclusive of any extensions;

K. A Judgment that the claims of United States Patent No. 12,766,143 remain valid and enforceable;

L. If the Natco Defendants engage in the commercial manufacture, use, importation, offer for sale, and/or sale of Natco's Generic Product prior to expiration of United States Patent No. 12,766,143, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

M. A declaration that this case is "exceptional" under 35 U.S.C. § 285 and an award of reasonable attorneys' fees;

N. An award of costs and expenses in this action; and

O. Such other and further relief as the Court may deem just and proper.

Against the Hetero Defendants

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A Judgment that the Hetero Defendants infringed one or more claims of United States Patent No. 12,097,202 by its submission of ANDA No. 220751 (the Hetero ANDA) seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Hetero's Generic Product before the expiration of United States Patent No. 12,097,202 under 35 U.S.C. § 271(e)(2)(A);

B. A Judgment that the Hetero Defendants' commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Hetero's Generic Product will infringe one or more claims of United States Patent No. 12,097,202 under 35 U.S.C. § 271(b);

C. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining the Hetero Defendants, and their officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Hetero's Generic Product prior to the expiration date of United States Patent No. 12,097,202, inclusive of any extensions;

D. An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220751 (the Hetero ANDA) under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent No. 12,097,202, inclusive of any extensions;

E. A Judgment that the claims of United States Patent No. 12,097,202 remain valid and enforceable;

F. If the Hetero Defendants engage in the commercial manufacture, use, importation, offer for sale, and/or sale of Hetero's Generic Product prior to expiration of United States Patent No. 12,097,202, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

G. A Judgment that the Hetero Defendants infringed one or more claims of United States Patent No. 12,766,143 by its submission of ANDA No. 220751 (the Hetero ANDA) seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Hetero's Generic Product before the expiration of United States Patent No. 12,766,143 under 35 U.S.C. § 271(e)(2)(A);

H. A Judgment that the Hetero Defendants' commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Hetero's Generic Product will infringe one or more claims of United States Patent No. 12,766,143 under 35 U.S.C. § 271(b);

I. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining the Hetero Defendants, and their officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Hetero's Generic Product prior to the expiration date of United States Patent No. 12,766,143, inclusive of any extensions;

J. An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220751 (the Hetero ANDA) under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States Patent No. 12,766,143, inclusive of any extensions;

K. A Judgment that the claims of United States Patent No. 12,766,143 remain valid and enforceable;

L. If the Hetero Defendants engage in the commercial manufacture, use, importation, offer for sale, and/or sale of Hetero's Generic Product prior to expiration of United States Patent No. 12,766,143, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

M. A declaration that this case is "exceptional" under 35 U.S.C. § 285 and an award of reasonable attorneys' fees;

N. An award of costs and expenses in this action; and

O. Such other and further relief as the Court may deem just and proper.

Dated: October 27, 2026

s/*Liza M. Walsh*

Liza M. Walsh
Katelyn O'Reilly
Lauren R. Malakoff
WALSH PIZZI O'REILLY FALANGA LLP
Three Gateway Center
100 Mulberry Street, 15th Floor
Newark, NJ 07102
(973) 757-1100

OF COUNSEL (*phv* forthcoming):

William E. Solander
Daniel J. Minion
Katherine E. Milea
Lauren P. Hartnett
Justine A. Kawa
VENABLE LLP
151 W. 42nd Street
New York, NY 10036
(212) 307-5500

Attorneys for Plaintiffs Kadmon Corporation, LLC, Kadmon Pharmaceuticals, LLC and sanofi-aventis U.S. LLC